

ADDENDUM TO MOU DATED 07th JULY 2024.

This Addendum is made on this 03rd day of November, 2025 between:

Client: Ms. Chanchal Kumari ("Client"),

AND

Developer: M/s Genus Tech India represented by Mr. Prajjwal Singh Gangwar ("Developer").

This Addendum amends the Memorandum of Understanding dated 07th July, 2024 (the "MOU").

Except as expressly modified below, all other terms and obligations under the MOU remain in full force and effect.

1. PURPOSE

1.1 This Addendum clarifies the Parties' objective: the timely delivery of two astrology mobile applications and a web-based admin panel, with a Node.js backend as expressly required by the Parties' original technical understanding. Any variance from Node.js is a material breach unless the Client provides prior written consent.

2. IRREVOCABLE TECHNOLOGY COVENANT

2.1 The Developer covenants and warrants that the backend (server, APIs, server-side logic, and admin panel server) is and will be implemented exclusively in Node.js (current LTS at time of delivery), and that the codebase will include:

- a)** a complete repository with commit history (Git),
- b)** automated build instructions (CI/CD scripts),
- c)** a dependency manifest and license inventory,
- d)** environment configuration / Dockerfile(s) or equivalent, and
- e)** migration and seed scripts.

2.2 If the Client reasonably suspects a technology deviation, the Client may require the Developer to run, on the Developer's premises or via a secure remote session, a short verification script or live demo that proves the runtime environment and Node.js stack within 48 hours of the request. The Developer must accommodate this request without delay.

3. PAYMENT, HOLDBACK & REFUND MECHANICS

3.1 Project price remains INR ₹ 1,70,000 (One Lakh Seventy Thousand Only). The Client has paid INR ₹ 73,000/- by UPI. The remaining INR ₹ 97,000 shall be paid only after final acceptance as set out below.

3.2 The Developer agrees that, if the Developer fails to deliver a functioning product conforming to the MOU and this Addendum within twenty (20) English Gregorian Calendar Month days from the date both Parties sign this Addendum (the Delivery Deadline), the Developer must refund the entire amount as decided by both the parties to the Client within seven (7) business days of the Delivery Deadline. Refunds must be made by bank transfer or UPI to the account specified by the Client and must include an additional interest penalty of 12% per annum calculated pro rata from the date of the first payment to the date funds clear in the Client's account. In the event of delay or non-performance by the Developer beyond the agreed schedule, the Developer shall be liable to refund all amounts received ₹ 73,000/- along with interest at 12% per annum and compensate the Client for any direct losses suffered due to such delay, subject to a maximum of ₹ 1,00,000/-

3.3 The Developer expressly waives any right to proportionate or partial retention of the Project funds in the event of non-delivery within the Delivery Deadline; the Client's election of refund remedy shall not prejudice any other remedies available under the MOU, law, or equity.

3.4 If the Developer makes the refund as required, the Developer shall simultaneously transfer, by secure means, all materials in Developer's possession pertaining to the Project: source code (full repo), design files, documentation, credentials, third-party licenses, and deployment keys (except those unrelated to the Project). Receipt of the refund will not be construed as an admission of performance; it simply resolves the financial account if delivered pursuant to this clause.

4. DELIVERY, ACCEPTANCE & TESTS: TIME IS OF THE ESSENCE

4.1 On or before the Delivery Deadline, the Developer shall deliver:

- a)** full source code repository (with history) and an export snapshot,
- b)** deployment-ready artifacts,
- c)** admin and mobile builds,
- d)** user documentation and developer technical documentation,

e) credentials for testing/staging, and

f) a one-hour walkthrough session for the Client's nominated reviewer.

4.2 Upon delivery, the Client has twenty (20) calendar days (the Acceptance Period) to execute acceptance testing against the acceptance checklist. If defects are found, the Client will provide a written defect list; the Developer will have three (3) calendar days to remediate, and resubmit for a second Acceptance Period of three (3) calendar days. If unresolved critical defects persist after remediation, the Client may elect to (A) refuse acceptance and demand refund as per Clause 3, and/or (B) retain third-party contractors to remedy defects at Developer's cost and seek reimbursement and damages.

4.3 "Critical defects" means defects that render the application non-functional or break core business logic (including but not limited to failures to respond to API calls, inability to authenticate, data corruption, or failure to run under Node.js).

5. SOURCE CODE ESCROW-LITE

5.1 If the Developer fails to deliver the Project on the Delivery Deadline, or if the Developer refuses refund while defects make the Project unusable, the Developer must immediately (within 24 hours) place a snapshot of the source code and deployment artifacts in a mutually agreeable escrow location (secure cloud folder with audit logs) accessible to the Client. The escrow release and access conditions are strictly procedural and intended to preserve the Client's right to continuity.

6. INTELLECTUAL PROPERTY

6.1 The MOU's IP regime applies: on full payment, the Client obtains ownership of the work product. Notwithstanding the above, the Developer hereby grants the Client an irrevocable, worldwide, perpetual, royalty-free, exclusive license to use, modify, and deploy the delivered components for all practical purposes if the Developer fails to meet the Delivery Deadline and/or refund obligations and the Client lawfully exercises its remedy to use the code or engage third parties for remediation.

6.2 The Developer further warrants that all delivered code is free from encumbrances and third-party claims and will indemnify the Client for breaches of this warranty.

7. REPRESENTATIONS, WARRANTIES & COVENANTS

7.1 Developer represents and warrants:

- a) It has authority to enter this Addendum.
- b) Work is original or properly licensed.
- c) It will comply with all applicable laws and security obligations (Clause 20 of the MOU).
- d) It will not delete or obscure repository history during the term of the MOU and 12 months thereafter.

7.2 The Developer covenants to cooperate in good faith in any handover and to provide reasonable assistance for 30 days after delivery (or termination plus refund), limited to 8 hours of support per week without charge.

8. REMEDIES, COSTS & INTEREST

8.1 The remedies under Clause 3 (refund + interest) are non-exclusive; the Client, without demur and without prejudice to and every remedy available and to the maximum extent permissible by and under the law of Bharat (India) may also seek specific performance, injunctions, damages, and recovery of legal costs and expenses (including Attorney' fees and arbitration costs, as the case may be).

8.2 If the Client prevails on a refund or damages claim, the Developer will pay the Client's reasonable legal and arbitration fees in addition to the refunded sums and interest.

9. NOTICES, EXECUTION & FORBEARANCE

9.1 Notices must be sent to the addresses and emails registered in the MOU and must be delivered by registered post, email (read receipt), and a UPI payment screenshot if payment is involved.

9.2 Developer acknowledges that any delay in refund is likely to cause irreparable business prejudice to the Client; the Client is entitled to seek provisional and injunctive relief without demur and without prejudice to other remedies.

10. DISPUTE RESOLUTION, GOVERNING LAW & FORUM

10.1 Any dispute arising under this Addendum shall follow the MOU dispute resolution: initial good-faith discussions, then mediation/arbitration in

Farrukhabad, Uttar Pradesh, governed by the Arbitration and Conciliation Act, 1996, and Indian law. Courts of Bharat (India) shall have jurisdiction for enforcement. Arbitration clauses are severable and will be enforced even if a larger claim challenges the contract's validity.

10.2 The Parties agree that a mediated settlement will be recorded as an enforceable settlement under Section 74 of the Act and may be enforced as a contract.

11. STAMP, EXECUTION & FORMALITIES

11.1 This Addendum must be executed on appropriate non-judicial stamp paper (or by e-stamping) as required under the Stamp Act applicable to the Parties' domiciles. Failure to stamp shall not invalidate substantive rights but the Parties will promptly cure any stamping requirements; parties agree that the arbitration clause will continue to operate pending cure.

12. MUTUAL NON-DISPARAGEMENT

12.1 Pending final settlement or refund, neither Party will make false, misleading, or disparaging statements about the other in public forums or to third parties. Breach of this provision entitles the aggrieved Party to injunctive relief and damages.

13. SIGNATURES

IN WITNESS WHEREOF, the Parties hereto execute this Addendum on the dates shown below:

For Developer: Genus Tech India

Name: PRAJWAL SINGH

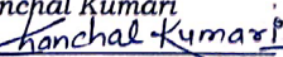
Title: _____

Signature: 

Date: 06/11/25

For Client: Chanchal Kumari

Name: Chanchal Kumari

Signature: 

Date: 04/11/2025

Witness (1)

Name: Anurag Kumar
Signature: Anurag K...
Date: 03/11/25

Witness (2)

Name: Samiddhi Rautagi
Signature: B...
Date: 06/11/25

Kanchal Kumari
Anurag K...